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LINE 7

25-CIV-00216

ANTHONY DASHON THORTON VS. #2131 ANGEL SANCHEZ, ET AL.

ANTHONY DASHON THORTON
#2131 ANGEL SANCHEZ

PRO SE
JOANNE TRAN

DEFENDANTS ANGEL SANCHEZ, JERMAINE DAVIS, OSCAR SANCHEZ, AND FLORES- GARCIA'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendants' unopposed Demurrer to Plaintiff's First Amended Complaint (FAC) is SUSTAINED WITHOUT LEAVE TO AMEND pursuant to Code of Civil Procedure section 430.10, subdivision (e) and Government Code sections 945.4, 950.2, as follows:

This action pertains to an alleged December 7, 2024 incident during which Plaintiff Anthony Dashon Thornton alleges that he was handcuffed in his residence, taken outside, and placed in a patrol car by defendant police officers Angel Sanchez, Jermaine Davis, Oscar Sanchez, and Flores-Garcia of the East Palo Alto Police Department based on a warrant for another person.

Plaintiff's operative FAC nominally alleges causes of action for breach of contract, common counts, and breach of the covenant of good faith and fair dealing. Defendants argue that each cause of action is subject to demurrer for failure to comply with the claims presentation requirements of the Government Claims Act and for failure to state facts sufficient to constitute a cause of action.

California's Government Claims Act (Gov. Code sections 810–996.6) governs tort liability for public entities and their employees. (Gov. Code, § 810.) Under Government Code section 905, all claims for money or damages against local public entities must be presented in accordance with the Act's procedures. (Gov. Code, § 905.) Government Code section 945.4 reinforces this requirement by providing that no suit for money or damages may be brought against a public entity until a written claim has been presented and acted upon or deemed rejected by the governing board. (Gov. Code, § 945.4.) These requirements are not merely procedural hurdles but have been characterized as substantive conditions precedent that are an integral part of the plaintiff's cause of action. (*Williams v. Horvath* (1976) 16 Cal. 3d 834, 842.)

A critical statute governing suits against individual public employees is Government Code section 950.2 which provides that “a cause of action against a public employee or former public employee for injury resulting from an act or omission in the scope of his employment as a public employee is barred if an action against the employing public entity for such injury is barred” for failure to comply with claim presentation requirements. (Gov. Code, § 950.2.) Notably, this bar applies “even though the public entity is immune from liability for the injury.” (*Id.*) Thus, for state tort claims, the claim presentation requirement applicable to a public entity extends

derivatively to the individual officer acting within the scope of employment. (See *Williams v. Horvath, supra*, 16 Cal. 3d at p. 834.) This principle applies to bar an action against a police officer where the plaintiff fails to file a claim under the Tort Claims Act. (See, e.g. *Del Real v. City of Riverside* (2002) 95 Cal. App. 4th 761 (holding that an injured motorist could not maintain a negligence action against a police officer where the plaintiff failed to timely file a government claim.)

Plaintiff's FAC does not allege that he has complied with a claims statute, but instead alleges that "Defendants are sued in their individual capacities; no claim presentation is required." (FAC, at p. 2.) Plaintiff's causes of action for breach of contract, common counts, and breach of implied covenant of good faith and fair dealing are therefore barred. Plaintiff alleges that the underlying events took place on December 7, 2025. (*Id.* at p. 6.) Claims relating to death, personal injury, or damage to personal property or growing crops must be brought within 6 months after accrual of the cause of action, while for all other types of claims against public entities, the deadline is one year after accrual. (Gov. Code, § 911.2.) More than one year has elapsed since the alleged events; thus the time for filing a government claim has expired.

The FAC does not allege the existence of a contract, any contractual terms, or facts supporting common count or breach of covenant of good faith and fair dealing causes of action. While those deficiencies may be curable by amendment, the claims would still be barred for failure to present a government claim absent an exception.

Plaintiff has already amended his original complaint once, and has not offered any argument that an exception applies to the claims presentation requirement or that he can obtain relief for the requirement. If Plaintiff believes that he has facts to state a cause of action, he shall properly contest the tentative ruling and appear at the hearing to provide facts to support the Court granting leave to amend. Although leave to amend is liberally allowed, such leave should not be granted where, in all probability as it appears to be in this case, amendment would be futile. (*Foroudi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1001.) It is the burden of the party seeking leave to amend to show the possibility that amendment can cure the legal defects of the pleading. (*Frayo v. Martin* (2024) 102 Cal.App.5th 1025, 1033; *Fox Paine & Co., LLC v. Twin City Fire Ins. Co.* (2024) 104 Cal.App.5th 1034, 1060.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 8

26-CIV-00963

ROBSON GONCALVES DE OLIVEIRA VS. CITY OF BURLINGAME

ROBSON GONCALVES DE OLIVEIRA
CITY OF BURLINGAME

PRO SE
SUSAN A. DENARDO

DEMURRER TO THE PETITION FOR PEREMPTORY WRIT OF MANDATE IN THE FIRST INSTANCE (CCP §1085)

CONTINUED FROM 6/16/2026

TENTATIVE RULING:

The court SUSTAINS without leave respondent City of Burlingame's unopposed demurrer to the petition of petitioner Robson Goncalves de Oliveira.

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) The demurrer may be made to the entire complaint or to any of the cause of action therein. (Code of Civ. Proc., § 430.50, subd. (a).)

In determining whether a complaint states facts sufficient to constitute a cause of action, courts accept the factual allegations of the complaint and any matters of which judicial notice can be taken but disregards contentions, deductions, and conclusions. (Code of Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) “The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) Thus, the complaint is construed liberally (Code of Civ. Proc., § 452), and facts that may be inferred from those expressly alleged must also be accepted as true (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405).

“[B]ecause standing goes to the existence of a cause of action, lack of standing may be raised by demurrer.” (*Buckland v. Threshold Enterprises, Ltd.* (2007) 155 Cal.App.4th 798, 813.)

Code of Civil Procedure section 1086 provides a writ of mandate “must be issued upon the verified petition of the party beneficially interested.” (Code Civ. Proc. §1086.) In *County of San Luis Obispo v. Superior Court (Munari)* (2001) 90 Cal. App.4th 288, 291-296, the court held that a landowner who lost his property through foreclosure could no longer maintain a mandamus action challenging the county's denial of his development application.

Here, like in *Munari*, Petitioner is no longer beneficially interested in the property at 1050 Carolan Avenue, Unit 120. Petitioner went to trial in an unlawful detainer action and lost. (RJN Nos. 2, 3.) Judgment was entered in favor of Equity Management LLC, who was allowed to
